



U.S. Department
of Transportation

Research and
Special Programs
Administration

FEB 29 1996 400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10606

EXPIRATION DATE: February 15, 1998

1. GRANTEE: General Oil Equipment Co., Inc.
Tonawanda, New York
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of residual amounts of certain liquid petroleum products in a non-DOT specification tank. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 173.24(c)(1) and 173.242 in that a non-DOT specification packaging is authorized.
5. BASIS: This exemption is based on the application of General Oil Equipment Co., Inc. dated May 1, 1991, and supplemental engineering information dated April 13, 1995, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Gasoline	3	UN1203	II
Petroleum crude oil	3	UN1267	II

FEB 29 1996

Continuation DOT E-10606

Page 2

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. PACKAGING - Packaging consists of a non-DOT specification cylindrical tank fabricated from U.S. Standard Gauge No. 7 mild steel and is used in meter proofing. This tank is permanently mounted to a truck chassis with its central axis vertical, as shown in the sketch submitted as part of the application. Supports and anchoring must comply with § 178.340-6 as published in the 1990 revision of Title 49, Code of Federal Regulations.
- b. TESTING - This packaging must be subjected to all tests and inspections required for a MC 306 cargo tank in accordance with § 180.407.
- c. OPERATIONAL CONTROLS - When not engaged in meter proofing operations, the tank must be drained of liquid hazardous residue to a level of less than 1 gallon.

8. SPECIAL PROVISIONS:

- a. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.
- b. MARKING - The tank must be marked on each side "DOT-E 10606" in letters and numbers at least 2-inches in height on a contrasting background.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS:

A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

- 11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:
 - o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.

FEB 29 1996

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

2/29/96
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA
PO: REK